# Montgomery County District Court

Cause No. 2024-CV-0006

Justin Anderson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Plaintiff's Original Petition

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| **Filed:** | July 23, 2024 |
| **Plaintiff's counsel:** | Kyle Sanders, Marshall & Dominguez LLP |

PARTIES

Plaintiff Justin Anderson is an individual residing in Texas who was the driver of the vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage under which Plaintiff now seeks recovery.

FACTS

On August 13, 2023, Plaintiff was lawfully stopped in traffic on a public roadway in League City, Texas, waiting for the vehicle ahead to proceed. A third-party driver operating a vehicle behind Plaintiff failed to stop and struck the rear of Plaintiff's vehicle at a substantial rate of speed. The impact drove Plaintiff's vehicle forward and jolted Plaintiff's body violently against the seat and restraint system. Plaintiff's vehicle sustained structural and cosmetic damage, and Plaintiff was unable to drive it from the scene. Plaintiff timely reported the collision and submitted a claim for benefits under the policy in force at the time of the loss.

NEGLIGENCE

The at-fault drievr owed a duty to mainatin a proper lookout, control speed, and keep a safe distance from vehicles ahead, and breached that duty by failing to do so. Defendant, as the insurer, owed Plaintiff a duty of good faith and fair dealing and a duty to promptly and reasonably investigate and resolve covered claims under the Texas Insurance Code. Defendant has failed to pay the benefits due under the policy within the time required by statute, and its handling of the claim has been unreasonable under the circumstances.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious shoulder injury requiring medical evaluation, imaging, and ongoing treatment. Plaintiff has incurred medical expenses, lost wages, and loss of use and enjoyment of daily activities, and expects to incur future care. Plaintiff seeks recovery of all benefits owed under the policy, statutory interest, attorney's fees, and court costs, and demands damages in the amount of $220,000.00.